

City Contract # _____

MPO Contract # 187466

PROFESSIONAL SERVICES AGREEMENT

for the

Van Buren Avenue Corridor PlanPREAMBLE

THIS AGREEMENT is made and entered into this ____ day of _____, 2022, by and between the City of Cheyenne, Cheyenne Metropolitan Planning Organization, hereinafter referred to as the “MPO”, and Y2 Consultants, LLC, hereinafter referred to as “Consultant.” The City of Cheyenne is acting as the agent of the MPO for the contract administration and as the MPO’s Fiscal Manager in accordance with **Contract #6111**.

AGREEMENT

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK.

The Consultant agrees to provide services as described for the above-mentioned project, in accordance with the Scope of Work attached hereto as Exhibit A, incorporated by reference and expressly made a part hereof.

2. TIME OF PERFORMANCE.

The work included in this Scope of Work will be completed in accordance with the project schedule attached hereto as Exhibit B, incorporated by reference and expressly made a part hereof. Any extensions of the time limit set forth in the Scope of Work shall be agreed upon in writing between the parties.

3. COMPENSATION.

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the MPO and the MPO agrees to pay Consultant a total cost-not-to-exceed amount of **One Hundred Three Thousand One Hundred and Ninety Dollars (\$103,190.00)**, in accordance with the fee schedule provided in Exhibit C, which is attached to this Agreement, incorporated by reference, and expressly made a part hereof. The amounts of all such payments shall be based upon the Consultant’s progress, verified by the MPO, in completing the work as described in Exhibits A, B, and C. Final payment shall be made following acceptance of the work by the MPO. Original quality reproductions of all designs, plans, reports, specifications, drawings, and other services rendered by the Consultant shall become the sole property of the MPO and shall be delivered to the MPO, immediately upon their preparation to the extent the MPO has satisfied its payment obligations to the Consultant. A portion of the payment may be held until any claims are resolved.

4. CONSULTANT RESPONSIBILITY.

The Consultant shall be responsible for the professional quality, technical accuracy, timely completion of drawings and other services rendered by the Consultant and its sub-consultants and shall, without additional compensation, promptly remedy and correct any errors, omissions, or other deficiencies, except to the extent that such errors, omissions or other deficiencies arise from the digital data created by *Cheyenne/Laramie County Cooperative Geographic Information System (CLCCGIS)*.

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. Upon notice to the Consultant and by mutual agreement between the parties, the Consultant will, without additional compensation, correct those services not meeting such a standard.

5. GIS MAPS AND DIGITAL DATA.

If the Consultant uses any maps, coverages, images, or other digital data created by the CLCCGIS for the project specified in Exhibit A, the Consultant agrees to return or destroy that information once the project is complete. Consultant agrees not to reuse or sell the GIS maps or data, which were provided as a professional courtesy and to minimize the cost of the project.

6. GIS DATA LIMITATION AND DISCLAIMED LIABILITY.

GIS data is collected primarily for use by the City of Cheyenne and Laramie County. Any unauthorized use of the data is at the risk of the user.

7. COMPLIANCE WITH LAWS.

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

8. DRUG-FREE WORKPLACE.

In compliance with the Drug-Free Workplace Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City employees. All architects, engineers, and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees, or sub-consultants are found in violation of this policy, the Agreement may be terminated.

9. INDEMNIFICATION/HOLD HARMLESS.

The Consultant agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses

incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Consultant, or its employees or sub-consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

10. **INSURANCE REQUIREMENTS.**

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance. For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Business Automobile Insurance. Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the Agreement.

Workers' Compensation. Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance. The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement;
- b. In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement;
- c. Consultant shall maintain said "claims made" coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement;

and,

- d. In the event the Consultant or the insurer terminates “claims made” coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period (“tail coverage”) which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information. The Consultant shall name the City of Cheyenne and the MPO as **an Additional Insured** by endorsement on its insurance policies, with the exception of workers’ compensation and professional liability insurance and shall provide the City with a copy of the endorsements.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City’s failure to request or review such policies, endorsements, or certificates shall not affect the City’s rights or Consultant’s obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

11. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES. 49 C.F.R. Part 26
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin or sex.
12. MPO REPRESENTATIVE.
Prior to commencement of work, the MPO will designate in writing, an MPO Representative who shall make, within the scope of his/her authority, all necessary decisions regarding the project. All requests for contract interpretations, field orders, contract modifications, change orders, and other clarification or instruction shall be

directed to the MPO Representative.

13. MONTHLY REPORT.

With every monthly billing, Consultant shall provide the MPO Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.

14. INDEPENDENT CONSULTANT.

The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the MPO or to incur any obligation of any kind on the behalf of the MPO.

15. TAXES.

The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts, and obligations incurred by in connection with its operations under this Agreement.

16. APPROVAL OF PLANS.

The MPO's approval of drawings, designs, plans, specifications, reports, and incidental work or materials shall not in any way relieve the Consultant of responsibility for the technical accuracy of the work. The MPO's approval or acceptance of, or payment for, any of the services shall not be construed to operate as a waiver of any of the MPO's rights under this Agreement or any of its legal rights under statute or common law arising out of the performance of this Agreement.

17. DEFAULT.

Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

18. REMEDIES.

In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:

- a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
- b. Treat the agreement as continuing and require specific performance.

19. TERMINATION BY MPO.

The MPO Representative may, without cause, by written notice within ten (10) days to the Consultant, terminate this Agreement in whole or in part at any time, for the MPO's

convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the MPO Representative within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the MPO will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

20. ADDITIONAL REMEDIES.

In the event the Consultant fails to strictly perform in accordance with this Agreement, the MPO may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

21. GOVERNING LAW, JURISDICTION AND VENUE.

The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

22. GOVERNMENTAL IMMUNITY.

The State of Wyoming, the Wyoming Department of Transportation (WYDOT), the City of Cheyenne, and Laramie County, along with their officials and employees, do not waive their governmental or sovereign immunity by entering into this Agreement, and the MPO does not waive governmental immunity, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the agreement, and each specifically retains all immunities and defenses available to them as sovereigns or governmental entities pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other state law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental or sovereign immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental or sovereign immunity. The State of Wyoming, WYDOT, the City of Cheyenne, Laramie County, and the MPO reserve all immunities and defenses available under the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*

23. AMENDMENTS.

Either party may request changes in this Agreement. Any changes, modifications, revisions, or amendments to this Agreement which are mutually agreed upon by and between the parties to this Agreement shall be incorporated by written instrument, executed and signed by all parties to this Agreement.

24. NO GOVERNMENT OBLIGATION TO THIRD PARTIES.

No Obligation by the Federal Government.

- a. The Consultant acknowledges and agrees that, notwithstanding any concurrence by the Federal Government in or approval of the solicitation or award of the underlying contract, absent the express written consent by the Federal Government, the Federal Government is not a party to this Agreement and shall not be subject to any obligations or liabilities to the Consultant, or any other party (whether or not a party to that contract) pertaining to any matter resulting from the underlying contract.
- b. The Consultant agrees to include the above clause in each subcontract financed in whole or in part with Federal assistance provided by the Federal Transit Administration (FTA). It is further agreed that the clause shall not be modified, except to identify the sub-consultant who will be subject to its provisions.

25. PROGRAM FRAUD AND FALSE OR FRAUDULENT STATEMENTS AND RELATED ACTS.

- a. The Consultant acknowledges that the provisions of the Program Fraud Civil Remedies Act of 1986, as amended, 31 U.S.C. § 3801, *et seq.*, and U.S. DOT regulations, "Program Fraud Civil Remedies," 49 C.F.R. Part 31, apply to its actions pertaining to this Project. Upon execution of the underlying contract, the Consultant certifies or affirms the truthfulness and accuracy of any statement it has made, it makes, it may make, or causes to be made, pertaining to the underlying contract or the FTA assisted project for which this contract work is being performed. In addition to other penalties that may be applicable, the Consultant further acknowledges that if it makes, or causes to be made, a false, fictitious, or fraudulent claim, statement, submission, or certification, the Federal Government reserves the right to impose the penalties of the Program Fraud Civil Remedies Act of 1986 on the Consultant to the extent the Federal Government deems appropriate.
- b. The Consultant also acknowledges that if it makes, or causes to be made, a false, fictitious, or fraudulent claim, statement, submission, or certification to the Federal Government under a contract connected with a project that is financed in whole or in part with Federal assistance originally awarded by FTA under the authority of 49 U.S.C. § 5307, the Government reserves the right to impose the penalties of 18 U.S.C. § 1001 and 49 U.S.C. § 5307(n)(1) on the Consultant, to the extent the Federal Government deems appropriate.
- c. The Consultant agrees to include the above two clauses in each sub-contract financed in whole or in part with Federal assistance provided by FTA. It is further agreed that the clauses shall not be modified, except to identify the sub-consultant who will be subject to the provisions.

26. FEDERAL CHANGES. 49 C.F.R. Part 18

Consultant shall at all times comply with all applicable FTA regulations, policies, procedures, and directives including, without limitation, those listed directly or by

reference in the Agreement (Form FTA MA (18) dated October 2011) between consultant and FTA, as they may be amended or promulgated from time to time during the term of this Agreement. Consultant's failure to so comply shall constitute a material breach of this Agreement.

27. INCORPORATION OF FEDERAL TRANSIT ADMINISTRATION (FTA) TERMS.
FTA Circular 4220.1F

Applicability: The incorporation of FTA terms applies to all contracts.

The preceding provisions include, in part, certain Standard Terms and Conditions required by DOT, whether or not expressly set forth in the preceding contract provisions. All contractual provisions required by DOT, as set forth in FTA Circular 4220.1F, are hereby incorporated by reference. Anything to the contrary herein notwithstanding, all FTA mandated terms shall be deemed to control in the event of a conflict with other provisions contained in this Agreement. The Consultant shall not perform any act, fail to perform any act, or refuse to comply with any City of Cheyenne requests which would cause City of Cheyenne to be in violation of the FTA terms and conditions.

28. LOBBYING. 31 U.S.C. § 1352 – 49 C.F.R. Part 19 - 49 C.F.R. Part 20

Byrd Anti-Lobbying Amendment, 31 U.S.C. § 1352, as amended by the Lobbying Disclosure Act of 1995, 2 U.S.C. § 1601, *et seq.* Consultants who apply or bid for an award of \$100,000 or more shall file the certification required by 49 C.F.R. Part 20, "New Restrictions on Lobbying". Each tier certifies to the tier above that it will not and has not used Federal appropriated funds to pay a person or organization for influencing or attempting to influence an officer or employee of any agency, a member of Congress, officer or employee of Congress, or an employee of a member of Congress in connection with obtaining any Federal contract, grant or any other award covered by 31 U.S.C. § 1352. Each tier shall also disclose the name of any registrant under the Lobbying Disclosure Act of 1995 who has made lobbying contacts on its behalf with non-Federal funds with respect to that Federal contract, grant or award covered by 31 U.S.C. § 1352. Such disclosures are forwarded from tier to tier up to the recipient.

29. ADA ACCESSIBILITY. 42 U.S.C. § 12101, *et seq.*

Applicability: Facilities construction or renovation contracts.

Facilities to be used in public transportation service must comply with 42 U.S.C. § 12101, *et seq.*, and DOT regulations, "Transportation Services for Individuals with Disabilities (ADA)", 49 C.F.R. Part 37; and Joint ATBCB/DOT regulations, "Americans with Disabilities (ADA) Accessibility Specifications for Transportation Vehicles," 36 C.F.R. Part 1192 and 49 C.F.R. Part 38. Notably, DOT incorporated reference the ATBCB's "Americans with Disabilities Act Accessibility Guidelines" (ADAAG), revised July 2004, which include accessibility guidelines for buildings and facilities, and are incorporated into Appendix A to 49 C.F.R. Part 37. DOT also added specific provisions to Appendix A modifying the ADAAG, with the result that buildings and facilities must comply with both the ADAAG amendments thereto in Appendix A to 49 C.F.R. Part 37.

30. PRIVACY ACT, 5 U.S.C. § 552

Applicability: The Federal Privacy Act requirements flow down to each third-party Consultant and their contracts at every tier.

The following requirements apply to the Consultant and its employees that administer any system of records on behalf of the Federal Government under any contract:

- a. The Consultant agrees to comply with, and assures the compliance of its employees with, the information restrictions and other applicable requirements of the Privacy Act of 1974, 5 U.S.C. § 552a. Among other things, the Consultant agrees to obtain the express consent of the Federal Government before the Consultant, or its employees operate a system of records on behalf of the Federal Government. The Consultant understands that the requirements of the Privacy Act, including the civil and criminal penalties for violations of that Act, apply to those individuals involved, and that failure to comply with the terms of the privacy Act may result in termination of the underlying contract.
- b. The Consultant also agrees to include these requirements in each sub-contract to administer any system of records on behalf of the Federal Government financed in whole or in part with Federal assistance provided by FTA.

31. MISCELLANEOUS TERMS REQUIRED BY WYOMING DEPARTMENT OF TRANSPORTATION.

- a. General Provisions.
 - (i) **Administration of Federal Funds.** The Consultant agrees its use of the funds awarded herein is subject to the Uniform Administrative Requirements of 2 CFR Part 200, et seq.; any additional requirements set forth by the federal funding agency; all applicable regulations published in the Code of Federal Regulations; and other program guidance as provided to it by WYDOT.
 - (ii) **Assumption of Risk.** The Consultant shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to its failure to comply with state or federal requirements. The Cheyenne MPO will notify the Consultant of any state or federal determination of noncompliance.
 - (iii) **Auditing and Accounting.** The Consultant shall make available to the Cheyenne MPO their accounting records for progress and post-performance audits when deemed necessary by the Cheyenne MPO.
 - (iv) **Breach of Agreement.** The Consultant agrees to provide all professional services as required by the terms, conditions, provisions, and obligations of this Agreement. Failure by the Consultant to perform as required by the terms, conditions, provisions, or obligations of this Agreement shall

constitute a breach of agreement. The Cheyenne MPO will consider a Consultant's failure to perform as a material breach of agreement when it can be determined that the terms, conditions, provisions, or obligations of the Agreement cannot be completed and the Cheyenne MPO will incur additional cost, lost opportunity, or additional time to obtain the same or equal Agreement deliverables. A material breach may result in remedies as the Cheyenne MPO deems appropriate, which may include, but are not limited to:

1. Termination as provided in Section 31 a. (xxvi) – Termination of Agreement;
2. Withholding monthly progress payments;
3. Assessing damages/sanctions;
4. Disqualifying the Consultant from future solicitations; and/or
5. Legal remedy.

(v) **Certification for Limitations on Lobbying Activities.** This provision is applicable to all Agreements exceeding One Hundred Thousand dollars (\$100,000.00). By signing this Agreement, the Consultant certifies and agrees that, to the best of their knowledge:

- a. No federal appropriated funds have been paid or will be paid, by or on behalf of the Consultant, to any person for influencing or attempting to influence an officer or employee of an agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the awarding of any federal contract, the making of any federal grant, the making of any federal loan, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any federal contract, grant, loan, or cooperative agreement.
- b. If any funds other than federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with this federal contract, grant, loan, or cooperative agreement, the Consultant shall complete and submit Standard Form-LLL, "Disclosure Form to Report Lobbying," in accordance with its instructions.

This certification is a material representation of fact upon which reliance was placed when this Agreement was made or entered into. Failure by the Consultant to carry out these requirements may be a material breach of this Agreement, which may result in remedies as provided in Section 31 a. (iv)

– Breach of Agreement.

- (vi) **Conflicts of Interest.** The Consultant shall not engage in providing consultation or representation of clients, agencies, or firms which may constitute a conflict of interest which results in a disadvantage to the Cheyenne MPO, or a disclosure which would adversely affect the interests of the Cheyenne MPO. This does not prohibit or affect the Consultant's ability to engage in consultations, evaluations or representation under agreement with other agencies, firms, facilities, or attorneys so long as no conflict exists. A conflict of interest may be considered a material breach of this Agreement. A material breach under this section may result in remedies as provided in Section 31 a. (iv) – Breach of Agreement. In the event the Agreement is terminated under this provision, the Consultant shall take steps to insure that the file, evidence, evaluation and data are provided to the Cheyenne MPO or its designee. The Consultant shall disclose, in writing, any potential or actual conflict of interest to the Cheyenne MPO, including financial or other personal interests.
- (vii) **Copyright License and Patent Rights.** The Consultant acknowledges that federal grantor, the State of Wyoming, and WYDOT reserve a royalty-free, nonexclusive, unlimited, and irrevocable license to reproduce, publish, or otherwise use, and to authorize others to use, for federal and state government purposes: (1) the copyright in any work developed under this Agreement; and (2) any rights of copyright to which the Consultant purchases ownership using funds awarded under this Agreement. The Consultant must consult with WYDOT regarding any patent rights that arise from, or are purchased with, funds awarded under this Agreement.
- (viii) **Determination of Allowable Costs.** The Consultant shall assure, prior to submittal of periodic progress payments, that all costs are in accordance with federal cost principals as provided in 48 CFR 31. Failure by the Consultant to carry out these requirements may be a material breach of this Agreement, which may result in remedies as provided in Section 31 a. (iv) – Breach of Agreement.
- (ix) **Disadvantaged Business Enterprise Assurance.** The Consultant or subconsultant shall not discriminate on the basis of race, color, national origin, or sex in the performance of this Agreement. The Consultant shall carry out applicable requirements of 49 CFR 26 in all subconsultant contract documents. Failure by the Consultant to carry out these requirements may be a material breach of this Agreement, which may result in remedies as provided in Section 31 a. (iv) – Breach of Agreement.

- (x) **Environmental Policy Acts.** The Consultant agrees all activities under this Agreement will comply with the Clean Air Act, the Clean Water Act, the National Environmental Policy Act, and other related provisions of federal environmental protection laws, rules, or regulations.
- (xi) **Errors and Omissions.** The Consultant shall be responsible for assuring that professional services provided under this Agreement are accurate and without mistakes or omissions. The Consultant shall endeavor to perform services in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances (Standard/Duty of Care). The Cheyenne MPO will notify the Consultant at the earliest possible time of the professional services which require corrective action and the Consultant, by mutual agreement with the Cheyenne MPO and without additional compensation, shall correct those services. Failure by the Consultant to carry out these requirements may be a material breach of this Agreement, which may result in remedies as provided in Section 31 a. (iv) – Breach of Agreement.
- (xii) **Federal Audit Requirements.** The Consultant agrees that if it expends an aggregate amount of seven hundred fifty thousand dollars (\$750,000.00) or more in federal funds during its fiscal year, it must undergo and organization-wide financial and compliance single audit. The Consultant agrees to comply with the audit requirements of the U.S. General Accounting Office Government Auditing Standards and Audit Requirements of 2 CFR Part 200, Subpart F. If findings are made which cover any part of this Agreement, the Consultant shall provide one (1) copy of the audit report to WYDOT and require the release of the audit report by its auditor be held until adjusting entries are disclosed and made to WYDOT's records.
- (xiii) **Human Trafficking.** As required by 22 USC 7104(g), 2 CFR 175, and 48 CFR 52.222-50 (Amended March 2015), severe forms of human trafficking, procurement of commercial sex acts, and the use of forced labor are prohibited. The March 2015 amendments expand the original requirements and introduce a list of specific types of conduct that are prohibited. The amendments modify mandatory disclosure obligations and specify the minimum level of cooperation required of consultants responding to a trafficking investigation. Failure by the Consultant to carry out these requirements may be a material breach of this Agreement, which may result in remedies as provided in Section 31 a. (iv) – Breach of Agreement.
- (xiv) **Kickbacks.** The Consultant certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations

made contingent upon the award of this Agreement. If the Consultant breaches or violates this warranty, Cheyenne MPO may, at its discretion, terminate this Agreement without liability to Cheyenne MPO, or deduct from the agreed upon price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.

- (xv) **Mandatory Disclosures.** The Consultant shall disclose, in a timely manner, in writing to the Cheyenne MPO all violations of federal criminal law involving fraud, bribery, or gratuity violations potentially affecting this award. Failure to make required disclosures can result in remedies for non-compliance including suspension or debarment.
- (xvi) **Monitoring Activities.** The Cheyenne MPO shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.
- (xvii) **Nondiscrimination.** The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), 42 U.S.C. § 12101, *et seq.*, the Age Discrimination Act of 1975, and any properly promulgated rules and regulations thereto and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy, or qualifying disability in connection with the performance under this Agreement.
- (xviii) **No Finder's Fees.** No finder's fee, employment agency fee, or other such fee related to the procurement of this Agreement, shall be paid by either party.
- (xix) **Non-Supplanting Certification.** The Consultant hereby affirms that federal grant funds shall be used to supplement existing funds, and shall not replace (supplant) funds that have been appropriated for the same purpose. The Consultant should be able to document that any reduction in non-federal resources occurred for reasons other than the receipt or expected receipt of federal funds under this Agreement.
- (xx) **Ownership of Documents/Work Product.** All documents, reports, records, field notes, materials and data of any kind resulting from performance of this Agreement are at all times the property of the Cheyenne MPO. Said documents and/or work products shall be delivered to the

Cheyenne MPO upon suspension, termination or completion of the services by the Consultant.

- (xxi) **Patent or Copyright Protection, and Rights in Data.** The Consultant recognizes that certain proprietary matters or techniques may be subject to patent, trademark, copyright, license, or other similar restrictions, and warrants that no work performed by the Consultant or its subconsultants shall violate any such restriction. The Consultant shall defend and indemnify the Cheyenne MPO for any violation or alleged violation of such patent, trademark, copyright, license, or other restrictions. Copyrighting or other exclusions placed on any documents or materials developed by the Consultant, its sublets, agents or assigns under this Agreement are prohibited. Data produced, furnished, acquired, or used in meeting the terms and conditions of this Agreement are available to the Cheyenne MPO, WYDOT and/or the federal funding agency with unlimited rights. Data means all recorded information, regardless of form, to include both technical – scientific or technical nature - and computer software information. It does not include information related to administration of the Agreement such as financial, cost or pricing, or management information. Unlimited rights means that the Cheyenne MPO, State or federal agency has the right to use, disclose, reproduce, and distribute the data in any manner and for any purpose, and to permit others to also have unlimited rights. Meanings and uses described in this General Provision are superseded and/or supplemented by 48 CFR 52.227-14.
- (xxii) **Professional Registration.** The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming.
- (xxiii) **Program Income.** The Consultant shall not deposit grant funds in an interest bearing account without prior approval of WYDOT. Any income attributable to the grant funds distributed under this Agreement must be used to increase the scope of the program or returned to WYDOT.
- (xxiv) **Publicity.** Any publicity given to the program or services provided herein, including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices prepared by or for the Consultant and related to the services and work to be performed under this Agreement, shall identify the Cheyenne MPO, WYDOT and the Federal Highway Administration (FHWA) as the sponsoring agencies and shall not be released without prior written approval of the Cheyenne MPO.

- (xxv) **Suspension and Debarment.** By signing this Agreement, the Consultant certifies that neither it nor its principals are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction nor from federal financial or non-financial assistance, nor are any of the participants involved in the execution of this Agreement suspended, debarred, or voluntarily excluded by any federal department or agency in accordance with the Office of Management and Budget guidelines at 2 CFR 180 and supplemented by 2 CFR 1200, or are on the disbarred vendors list at www.sam.gov/portal/public/SAM/. Further, the Consultant agrees to notify the Cheyenne MPO by certified mail should it or any of its agents become debarred, suspended, or voluntarily excluded during the term of this Agreement. Failure by the Consultant to carry out these requirements may be a material breach of this Agreement, which may result in remedies as provided in Section 31 a. (iv) – Breach of Agreement.
- (xxvi) **Termination of Agreement.** The Cheyenne MPO may at any time, by written notice, terminate all or part of the Agreement when the Cheyenne MPO determines that the Consultant has failed to perform as required by the terms, conditions, provisions, or obligations of the Agreement – Termination for Cause or Breach – or the Cheyenne MPO determines that termination is in the public’s best interest – Termination on Public’s Behalf/Convenience. In this event, compensation will be made to the Consultant based upon the progress of the work performed prior to termination. Work performed shall be defined as the deliverables specified in the Agreement and accepted by the Cheyenne MPO, and not the labor hours billed. The Cheyenne MPO will notify the Consultant, in writing, of Agreement termination.
- (xxvii) **Title VI Assurances for Non-Discrimination.** The Consultant agrees to comply with the requirements of the nondiscrimination clauses as described in the U.S. Department of Transportation (DOT) Order 1050.2.

40. ENTIRETY OF AGREEMENT.

This Agreement consisting of 16 pages, Exhibit A consisting of 6 pages, Exhibit B consisting of 1 page, and Exhibit C consisting of 2 pages respectively, and submitted proposal with negotiated changes, contain the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter. Time is of the essence hereof. Any timing extension shall be approved in writing by both parties.

IN WITNESS WHEREOF, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

Cheyenne Metropolitan Planning Organization
2101 O'Neil Avenue
Cheyenne, WY 82001

By: _____
Troy Thompson, Chairman
MPO Policy Committee

Date: _____

City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001

By: _____
Patrick Collins, Mayor

(SEAL)

Attest: _____
Kristina F. Jones, City Clerk

Date: _____

Consultant

Y2 Consultants, LLC
1725 Carey Avenue
Cheyenne, WY 82001

By: _____

Print Name: Gary Grigsby, PEELS

Title: Cheyenne Operations Manager

Date: _____

EXHIBIT A – SCOPE OF WORK

PHASE 0 – PRE-PROJECT AND PROJECT COORDINATION

1. **Kick Off Meeting:** Y2 will meet with the MPO Project Manager and Project Steering committee at the study outset to clarify roles and expectations, establish communication protocols, coordinate public meeting schedules, and event venues, finalize the meeting schedule, and discuss other issues as needed.
2. **Coordination Meetings, Project Mobilization and Management:** Y2 will hold meetings with Project Steering Committee and Stakeholders throughout project. Includes meetings prior to public meetings, after draft submittal, conclusion of the project (4). Periodic meetings (assumed monthly or 3 additional meetings). Task also includes management to get contract in place and progress documentation for invoices.

PHASE 1 – RESEARCH, PUBLIC OUTREACH, AND 10% ALTERNATIVE DEVELOPMENT

3. **Stakeholder Outreach and Research:** Stakeholder coordination will include discussions with adjacent property owners, Laramie County Public Works and Planning, the Laramie County School District #1, City Engineering, Public Works, and Planning Departments, Cheyenne Transit Program, and WYDOT. This is additional coordination that is not meeting related.
4. **Data and Document Review.** Review the Cheyenne MPO's long range plan, PlanCheyenne/Connect 2045 and all existing studies, development actions in the vicinity, etc. that exist for any part of the study area and make recommendations that incorporate these studies. Y2 will use existing data to the greatest extent possible. Document review will include but not be limited to:
 - a. Cheyenne MPO and GIS Cooperative materials, including existing mapping data, reports, and project information. Cheyenne MPO Office will provide recent traffic and crash data, model traffic projections, aerial photography, GIS layers reflecting zoning, land use
 - b. Board of Public Utilities (BOPU) water and sewer GIS Layer
 - c. Current MPO traffic counts
 - d. MPO and WYDOT Crash Reports
 - e. City of Cheyenne Unified Development Code
 - f. Laramie County Subdivision Regulations
 - g. 2017 Storey Boulevard/Summit Road and Van Buren Avenue 10% Design Plan Final Report
 - h. 2020 PlanCheyenne Connect 2045, Cheyenne MPO
 - i. 2015 Neighborhood Traffic Management Program (NTMP), Van Buren Avenue, Cheyenne MPO
 - j. 2019 East Dell Range Boulevard / U.S. Highway 30 Corridor Study, with special attention to proposed changes at the intersection of Dell Range Blvd and Van Buren Ave
 - k. 2010 Cheyenne Metropolitan Area Pedestrian Plan and Safe Routes to School Plan

- l. 2012 Cheyenne On-Street Bicycle Plan and Greenway Plan Update
 - m. Current WYDOT design details for the U.S. Highway 30 / Van Buren Intersection. Y2 will review WYDOT's alignment and proposed intersection changes at U.S. Highway 30 to determine if they are adequate and/or appropriate
 - n. Current Whitney Ranch Storm Sewer design
 - o. 2020 Dildine Elementary School Traffic Study and Site Plan
- 5. **Utility Location:** Y2 and partner, Underground Consulting Solutions (UCS), will locate and document all known dry or wet utilities within the study area, including but not limited to, the Board of Public Utilities' existing and proposed water and sewer. The Y2 team will contact all known dry and wet utility companies for anticipated projects and future requirements on the corridor. Y2 will create a checklist of considerations and assumptions relating to known utility infrastructure adjacent to and within the Van Buren Avenue right of way.
- 6. **Land Survey:** Y2 will conduct a land survey to determine precise right- of-way widths. On the south end of Van Buren Avenue the roadway is two-lane with shoulders and a right-of-way width between 50-60 feet between platted lots. The roadway widens to roughly 80 feet of right- of-way between platted lots around Rock Springs Road and transitions to two-lane with parking on the east side.
- 7. **Traffic Counts:** Cheyenne MPO will provide volume, speed, and classification information from 24-hour weekday counts for five locations along the corridor. Cheyenne MPO will also provide turning movement counts for nine locations within the corridor including cars, heavy trucks, bicycle, and pedestrian traffic.
- 8. **Traffic and Safety Analysis:** Y2 consultants will complete the following tasks:
 - a. **Analyze Historic Crashes:** Y2 will obtain WYDOT crash data and map it in GIS to identify patterns and trends along the corridor. Y2 will develop potential solutions to reduce the number and severity of crashes along the corridor.
 - b. **Develop Future Volumes.** Y2 will develop base year, projected daily, and AM and PM peak hour traffic volumes for up to nine intersections, using MPO traffic and turn movement counts coupled with link growth rates from the Cheyenne MPO 2019 and 2045 TransCAD model, plus any updated land use plans adjacent or impacting the corridor at the time of the study.
 - c. **Conduct Traffic Safety Evaluation:** Y2 will evaluate traffic safety throughout the Van Buren Avenue project study area between Dell Range Boulevard and U.S. Highway 30 including access management potential (driveway access realignments, modifications, or consolidations), intersection modifications or reconfiguration, sidewalk improvements, and utility relocation. Y2 will consider ADA accessibility issues for future transit routes, vehicular, pedestrian, and bicycle needs for today's traffic and phased improvements based on 25-year traffic forecasts.

- d. **Street Inventory:** Y2 will confirm the street inventory information from the MPO during the site visit.

9. Develop Short- and Long-Term Improvement Alternatives

- a. **Short-Term Improvements.** Y2 will recommend short term improvement options to reduce crashes and improve existing operations.
- b. **Medium-Term improvements** Ye will recommend improvements that include small construction projects that are feasible with full reconstruction.
- c. **Long-Term Improvements.** Y2 will conduct level of service (LOS) analysis using the Highway Capacity Software (HCS) to compare intersection geometric and traffic control options. Y2 will recommend long-term improvements including lane configuration and traffic control for intersections and links along the corridor. Intersection configuration and traffic control options will be determined based on needs and opportunities at each intersection, stakeholder input, and sound engineering judgment.

10. Preliminary Drainage Evaluation: Y2 will review information available from Whitney Ranch LLC and the City of Cheyenne regarding Whitney Ranch storm sewer facilities, and factor that information into our drainage analysis for the Van Buren corridor. Y2 will evaluate drainage constraints, impacts, and proposed mitigation solutions throughout the Van Buren Avenue project study area between U.S. Highway 30 and Dell Range Boulevard. As a part of the planning document, Y2 will prepare a drainage analysis summary per the written requirements of the City of Cheyenne assuming a drainage model and report will be provided on this existing storm water trunkline. This study will be limited to the following:

- a. Y2 will identify the major tributary basin areas within the corridor limits. Basin areas will be developed using electronic contours (compatible with AutoCAD) furnished by the MPO.

11. Recommend Design Solutions.

- a. Y2 will review national best practices to encourage slower vehicular traffic through the school zone.
- b. Y2 will make recommendations for a fully built out urban section to handle existing and future traffic. Recommendations will include future solutions to slow vehicular traffic and increase bicyclist and pedestrian use and safety along Van Buren Avenue. The plans will accommodate future growth of the area along with the increased traffic.
- c. The amount of ROW acquisition and how that may be acquired will be included to allow for a full collector typical section.
- d. Y2 will work to assure proposed designs or changes to the right-of-way will not impede snow removal, street sweeping, trash removal services or other maintenance operations.
- e. Y2 will recommend additional design solutions to address additional problems identified during the study.

- 12. Public Meeting #1 – Findings Presentation and Design Charrette:** To wrap up the research and alternative development phase of the study, Y2 will conduct a public meeting to present findings from the research phase, including previous plans, stakeholder coordination, traffic and safety analyses, drainage analysis, practical alternatives, and preliminary alternative evaluations. After the initial presentation, Y2 and interested City Planning and MPO staff will then conduct a design charrette using large-scale aerial imagery on tables to enable citizens to note any issues and ideas for corridor improvements. The meeting will include a sign in sheet and survey/comment sheet to record public preferences. Y2 will draft a press release for use by the MPO, post on the project web page, and engage a changeable message sign to announce the meeting held at the newly remodeled Dildine Elementary School.

PHASE 2 – PLANNING AND 35% PRELIMINARY DESIGN

- 13. MPO and Steering Committee Review:** Y2 has scheduled 2 weeks for the MPO and Steering Committee to review the project status and provide direction to Y2 as to the preferred alternatives for the final plan and 35% design.
- 14. 35% Conceptual Design Plan:** With thorough City, County, WYDOT, LSCD, MPO staff and public input, Y2 will develop DRAFT 35% design plans and plan document for reconstruction of Van Buren Ave. between Dell Range Blvd and U.S. 30 for all modes of travel. The 35% preliminary improvement plans will include cover sheet, plan and profile sheets, typical sections, recommended intersection geometric layout details, and roadway cross sections for long term improvements of traffic operations through the study area and reduced speeds in the school zone. Y2 will consider all modes of travel, preservation and expansion of the Greenway, and bicycle and pedestrian accessibility and connectivity within both City and County jurisdiction. Y2 will consider safe routes for pedestrians and bicyclists through the school zone for incorporation into the Cheyenne MPO Safe Routes to School Plan. Y2 will map and recommend jurisdictional changes along the corridor, if appropriate, and include current right-of-way ownership and widths and any land survey work needed.
- 15. Final Drainage Evaluation:** Y2 will provide:
- a. Engineering capacity design calculations for existing or proposed pipes and drainage conveyance elements identified for 35% plans using the initial and major storm runoffs and proposed drainage improvements (i.e. replacement of approach pipes and roadside ditch improvements, street capacity, and/or storm sewer including known future storm water work) through the Van Buren Avenue corridor. No analysis of any offsite culverts, storm drains, or subdivision drainage elements are anticipated at this time.
 - b. Y2 will develop a constraints analysis and improvement plan map of the corridor depicting existing drainage issues and proposed improvements, along with cost estimation of proposed drainage improvements.

- 16. Cost Estimation:** Y2 will develop detailed cost estimates for the recommended corridor improvements, including conceptual design elements, landscaping, right-of-way, and costs of other corridor-related drainage needs that are above and beyond the improvements planned for the upcoming Whitney Ranch stormwater work. While working with the City/County/MPO staff, variations to the plan may be made to provide flexibility or more closely match expected construction budgets. Consequently, these items may be broken into alternate bid items or phases to clearly illustrate the costs of including all or part of these elements with the reconstruction of the corridor. Y2 will clearly identify any property that will need to be acquired for the recommended solutions.

PHASE 3 – DELIVERABLES PRODUCTION

- 17. Public Meeting #2: Presentation of Plan:** To conclude the preliminary design phase, Y2 will conduct a second open house at Dildine Elementary to present the draft final plan to the public. Y2 will design all digital and traditional advertising materials, as well as produce all meeting materials, and provide these materials and public engagement results to MPO staff for use on the MPO website and other social media platforms. Y2 will provide a Press release for distribution by the MPO, advertise the meeting on the project web page, and try to obtain a changeable message sign to announce public meetings. Y2 will provide sign in sheets and surveys / comment sheets to record public comments.
- 18. MPO and Steering Committee Review and Direction (3 Weeks):** Per the RFP, Y2 has scheduled three weeks for MPO and cooperating agencies to review the Draft Final Plan and public comments and direct final edits to the Van Buren Corridor Plan document and associated materials.
- 19. Plan Presentations:** Y2 will provide up to eleven presentations of the Draft and Final plans, including standard presentations of the final document to the City Governing Body (1) and County Commissioners (1), meetings with the MPO's Technical Committee (2), Citizens' Advisory Committee (2), and Policy Committee (1), City Planning Commission (1), City Public Service Committee (1) and the County Planning Commission (1). A short, mid-project update to the MPO Policy Committee is also expected. (1) Y2 also plans presentations to the MPO Citizens' Advisory Committee and the MPO Technical Committee during the project, according to the MPO's meeting schedule.
- 20. Deliverables Production Specifications:** Per the RFP, Y2 will be responsible for miscellaneous copies for review to MPO /Steering Committee, City Engineering, County Public Works/Planning, and Steering Committee as needed throughout the project. Y2 will be responsible for providing up to five (5) hard copies of the preliminary draft report. Y2 will be responsible for providing up to five (5) hard copies of the final report, maps and the resolution after its adoption by the Governing Body and MPO Policy Committee, along with electronic copies in PDF format. Y2 will

provide final mapping and GIS Shapefiles. Specific deliverables are expected to include (but may not be limited to) the following:

- a. Advertisement design and electronic copies for public participation efforts that may possibly include postcards, newspaper advertisements, and social media, among others.
- b. Displays for staff, steering and/or public meetings including maps, boards, handouts, surveys, and sign-in sheets. These will be available as electronic copies to the MPO to review at a minimum of 4 business days prior to meetings and summaries of surveys promptly upon completion.
- c. Summary of all public meetings and steering committee meetings will be produced within a week of the event.
- d. Power Point presentations prepared for ALL meetings, and a text summary of all meetings for the MPO website.
- e. Thirty-five percent plan and profiles for roadway, rights-of-way including any land survey, utilities and drainage considerations of Van Buren Avenue from Dell Range Boulevard to U.S. Highway 30.
- f. Cost estimates for preliminary construction, Right of Way acquisitions and drainage improvements for the phasing of the project.
- g. Documentation of progress shall be included with every invoice.
- h. Electronic copies of all documents, images, photos, maps, draft plans and final plans
- i. Y2 will prepare such graphics and other maps that may be needed to illustrate the recommendations, and alignments and improvements proposed. Y2 will be responsible for preparing the final recommendations in a map and report format, as well as electronically.
- j. The Final Planning document will contain the below disclaimer within the title pages. *"The preparation of this report has been financed in part through grant[s] from the Federal Highway Administration and Federal Transit Administration, U.S. Department of Transportation, under the State Planning and Research Program, Section 505 [or Metropolitan Planning Program, Section 104(f)] of Title 23, U.S. Code. The contents of this report do not necessarily reflect the official views or policy of the U.S. Department of Transportation."*

EXHIBIT B - PROJECT SCHEDULE

Y2 has designed a planning process to meet the target completion date, while minimizing the effects of unexpected events which can result in delay. The planning process is designed to reduce the probability of delay. As always, the earlier the project can commence, the earlier it can be completed.

Major Study Tasks and Milestones	Tentative Completion Date
Phase 0: Notice to Proceed	
Notice to Proceed	October, 2022
Kick-off Meeting	October, 2022
Phase 1: Data Collection, Public Outreach, Alternative Development	
Public Involvement and Stakeholder Outreach begins	October-November, 2022
Data collection, analysis, and review	December-January, 2022
Public Open Houses / Charrettes #1	February, 2023
Phase 2: Preliminary Design	
MPO / Steering Committee Review and Direction	February, 2023
Detailed Conceptual Plans and Drainage Evaluation	April, 2023
Public Open House #3	May, 2023
Phase 3: Final Deliverables Production	
MPO / Steering Committee Review and Direction	June, 2023
Final Deliverables	July, 2023
Presentations to all Decision Bodies	July, 2023

EXHIBIT C - FEE SCHEDULE



TASK #	TASK NAME	AGENCY RESPONSIBLE	INDIVIDUALS RESPONSIBLE	LINE ITEM BUDGET	Y2 SUMMARY	UCS
0					\$ 101,090	\$ 2,100
	Notice to Proceed	CHEYENNE MPO	STEVENS	\$0		
Phase 0 - Pre-Project and Project Coordination				\$16,440		
1	Kick Off Meeting	ALL	LEMMERS, BLAINE, MCOMIE, WADDELL	\$1,980	\$1,980	
2	Coordination Meetings, Project Mobilization and Management	ALL	LEMMERS, CARLSON, MCOMIE, WADDELL	\$14,460	\$14,460	
Phase 1 - Research, Public Outreach, and 10% Alternative Development				\$44,860		
3	Stakeholder Outreach and Research	Y2	WADDELL, LEMMERS, MCOMIE	\$2,580	\$2,580	
4	Data and Document Review	Y2	WADDELL, LEMMERS	\$2,950	\$2,950	
5	Utility Location	Y2 and UCS	GOFF, WADDELL NEVILLE, BLAINE , WAITE	\$4,660	\$2,560	\$2,100
6	Land Survey	Y2	BLAINE WAITE GRIGSBY	\$5,900	\$5,900	
7	Traffic Counts	MPO	STEVENS	\$0	\$0	
8	Traffic and Safety Analysis and Street Inventory	Y2	WADDELL GRIGSBY MCOMIE	\$7,450	\$7,450	
9	Develop Short, Medium and Long Term Improvement Alternatives	Y2	WADDELL, GRIGSBY, NEVILLE, HELFRICH, MCOMIE	\$4,220	\$4,220	
10	Preliminary Drainage Evaluation	Y2	LEMMERS	\$4,050	\$4,050	
11	Recommend Design Solutions	Y2	HELFRICH, WADDELL, GRIGSBY	\$3,530	\$3,530	
12	Public Meeting #1:PRESENTATION OF ALTERNATIVES AND PUBLIC DESIGN CHARRETTE	ALL	STEVENS, WADDELL, CARLSON, HELFRICH WADDELL LEMMERS MCOMIE AND STEERING COMMITTEE	\$9,520	\$9,520	
Phase 2 - Planning and 35% Preliminary Design				\$23,090		
13	MPO and Steering Committee Review and Direction (2 Weeks)	CHEYENNE MPO	STEVENS	\$0	\$0	
14	35% Conceptual Design Plan	Y2	LEMMEERS, HELFRICH, WADDELL, GRIGSBY, MCOMIE, CARLSON	\$12,420	\$12,420	
15	Final Drainage Evaluation	Y2	LEMMERS	\$4,320	\$4,320	
16	Cost Estimation	Y2	WADDELL HELFRICH LEMMERS	\$2,550	\$2,550	
17	Public Input Session #2 - Presentation of DRAFT CORRIDOR PLAN	PO, STEERING COMM	OLSEN, LEMMERS, WADDELL, HELFRICH, MCOMIE, CARLSON	\$3,800	\$3,800	
Phase 3 - Deliverables Production				\$18,800		
18	MPO and Steering Committee Review and Direction (3 Weeks)	CHEYENNE MPO	STEVENS	\$0	\$0	
19	Plan Presentations	Y2	LEMMERS, OLSEN, WADDELL, MCOMIE	\$10,320	\$10,320	
20	Deliverables Production Specifications	Y2	ALL	\$8,480	\$8,480	
PROJECT TOTAL=				\$103,190		

HOURLY BILLING RATE TABLE

Position Title	Employee Name	Billing Rate
Water Scientist, Water Rights Specialist (Survey LSI)	Liberty Blain	\$100.00/hour
Project Coordinator	Shelby Carlson	\$225.00/hour
Electrical Engineer	Jerry Downs	\$190.00/hour
Civil Engineer	Chad Dunn	\$90.00/hour
Civil Engineer QA/QC	Gary Grigsby	\$150.00/hour
Civil Engineer	Adrienne Lemmers	\$135.00/hour
Senior Engineer	Del McOmie	\$210.00/hour
Project Engineer	Brian Neville	\$95.00/hour
Transportation Planner	Ed Waddell	\$100.00/hour
Survey Technician	Maxwell Waite	\$75.00/hour
Civil Engineer	Skyler Helffrich	\$130.00/hour
Public Involvement Specialist	Kosha Olsen	\$125.00/hour